

Rabia Juneid v. U.P. Power Corporation Ltd.

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 30 April 2025 · 2025:AHC-LKO:24814-DB · Writ-C No. 4124 of 2025 · **Writ disposed of; licensee to consider the first petitioner's prepaid connection application under clause 4.4 with an indemnity bond, simultaneously with opposite party no. 4's disconnection request, after verifying possession and hearing opposite party no. 4.**

HEADNOTE

An occupant who applies for a prepaid connection with an indemnity bond under paragraph 4.4 of the U.P. Electricity Supply Code, 2005 is entitled to have that application considered after possession is verified; the recorded consumer's representative must be heard, and any disconnection request may be considered at the same time. The writ court does not itself grant the connection.

FACTUAL SUMMARY

The first petitioner, daughter-in-law of opposite party no. 4, and her two children occupy the premises whose electricity connection stands in the name of opposite party no. 4's late husband. Opposite party no. 4 applied to U.P. Power Corporation Ltd. for disconnection. Proceedings between the first petitioner and opposite party no. 4 under the Protection of Women from Domestic Violence Act, 2005 are pending. The petitioners approached the Lucknow Bench to protect supply; notice to opposite party no. 4 was dispensed with.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

occupant prepaid connection on indemnity bond

HOLDING

If the petitioners are in possession of the premises (a fact the licensee must verify) and the first petitioner applies for a prepaid electricity connection with an indemnity bond referable to paragraph 4.4 of the U.P. Electricity Supply Code, 2005, the licensee shall consider that application and pass appropriate orders if she is otherwise eligible. Opposite party no. 4 shall be heard; her rights in the premises are not prejudiced. Consideration of her disconnection application is not barred, but the prepaid-connection application shall be considered simultaneously. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONERS ARE IN POSSESSION OF THE PREMISES

Left to verification by the licensee before any 4.4 decision. ¶ 1

NOT DECIDED — MERITS OF THE PREPAID CONNECTION APPLICATION AND OF OPPOSITE PARTY NO. 4'S DISCONNECTION REQUEST

Licensee to consider both simultaneously; eligibility not decided by the Court. ¶ 1

NOT DECIDED — SUBSTANTIVE RIGHTS OF OPPOSITE PARTY NO. 4 IN THE PREMISES

Expressly kept open; the order is without prejudice. ¶ 1